

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DANIEL HAYES,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. RAFAL KORYCKI, Tax Id. No. 952946, Individually and in his Official Capacity, SGT. SAMANTHA CABRERA, Tax Id. No. 941481, Individually and in her Official Capacity, DET. DAVID JOEL, Tax Id. No. 928546, Individually and in his Official Capacity, P.O. THOMAS MARFOGLIO, Tax Id. No. 951966, Individually and in his Official Capacity, P.O. RICHARD LUCIANI, Tax Id No. 951943, Individually and in his Official Capacity, DET. ARMANDO SAITTA, Tax Id. No. 940690, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

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SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County
as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Amended Complaint in this action, and to serve a copy of your answer, or, if the Amended Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Amended Complaint.

Dated: NEW YORK, NEW YORK
May 31, 2018

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER
Corporation Counsel of the City of New York
100 Church Street
New York, New York 10007

P.O. RAFAL KORYCKI, Tax Id. No. 952946
Patrol Borough Brooklyn North
179 Wilson Ave.
Brooklyn, NY 11237

SGT. SAMANTHA CABRERA, Tax Id. No. 941481
Internal Affairs Bureau
315 Hudson St.
New York, NY 10013

DET. DAVID JOEL, Tax Id. No. 928546
Firearm Suppression Unit
c/o 1 Police Plaza, Room 1200
New York, NY 10007

P.O. THOMAS MARFOGLIO, Tax Id. No. 951966
Narcotics Borough Queens South
c/o 1 Police Plaza, Room 1200
New York, NY 10007

P.O. RICHARD LUCIANI, Tax Id No. 951943
79th Precinct
263 Tompkins Ave.
Brooklyn, NY 11216

DET. ARMANDO SAITTA, Tax Id. No. 940690
79th Precinct Detective Squad
263 Tompkins Ave.
Brooklyn, NY 11216

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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DANIEL HAYES

Plaintiff,

VERIFIED COMPLAINT

-against-

Jury Trial Demanded

THE CITY OF NEW YORK, P.O. RAFAL KORYCKI, Tax Id. No. 952946, Individually and in his Official Capacity, SGT. SAMANTHA CABRERA, Tax Id. No. 941481, Individually and in her Official Capacity, DET. DAVID JOEL, Tax Id. No. 928546, Individually and in his Official Capacity, P.O. THOMAS MARFOGLIO, Tax Id. No. 951966, Individually and in his Official Capacity, P.O. RICHARD LUCIANI, Tax Id No. 951943, Individually and in his Official Capacity, DET. ARMANDO SAITTA, Tax Id. No. 940690, Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.

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Plaintiff DANIEL HAYES, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff DANIEL HAYES is an African-American male and has been at all relevant times a resident of Kings County in the City and State of New York.

2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, P.O. RAFAL KORYCKI, Tax Id. No. 952946, SGT. SAMANTHA CABRERA, Tax Id. No. 941481, DET. DAVID JOEL, Tax Id. No. 928546, P.O. THOMAS MARFOGLIO, Tax Id. No. 951966, P.O. RICHARD LUCIANI, Tax Id No. 951943, DET. ARMANDO SAITTA, Tax Id. No. 940690 and POLICE OFFICERS "JOHN DOE" #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

8. On or about May 5, 2016, at approximately 11:30 a.m., plaintiff, DANIEL HAYES was lawfully in the vicinity of 194 Tompkins Ave. Brooklyn, NY, as a passenger in the back seat of a livery cab.

9. At the aforesaid time and place, the livery cab was pulled over by the above-named defendant NYPD officers – namely, defendants KORYCKI and CABRERA. Several minutes later, the above-mentioned officers were joined on the scene by defendants MARFOGLIO and LUCIANI.

10. Thereafter, without possessing probable cause or reasonable suspicion to believe that plaintiff had committed or was about to commit any crimes or infractions, or that plaintiff was in possession of any weapons, defendants KORYCKI, CABRERA, MARFOGLIO and/or LUCIANI accosted plaintiff, ordered him out of the livery cab and unlawfully searched his person and effects without his consent.

11. Thereafter, defendants KORYCKI, CABRERA, MARFOGLIO and/or LUCIANI placed plaintiff under arrest by handcuffing his arms tightly behind his back.

12. At no time on May 5, 2016, did defendants KORYCKI, CABRERA, MARFOGLIO and/or LUCIANI possess probable cause and/or reasonable suspicion to order plaintiff out of the livery cab and seize his person.

13. At no time on May 5, 2016, did defendants KORYCKI, CABRERA, MARFOGLIO and/or LUCIANI possess probable cause and/or reasonable suspicion to search plaintiff's person or effects nor did they obtain voluntary consent from him to do so.

14. At no time on May 5, 2016, did defendants KORYCKI, CABRERA, MARFOGLIO and/or LUCIANI possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to order plaintiff out of the livery cab and seize his person.

15. At no time on May 5, 2016, did defendants KORYCKI, CABRERA, MARFOGLIO and/or LUCIANI possess information that would lead a reasonable officer to believe probable cause and/or reasonable suspicion existed to search plaintiff's person or effects.

16. Thereafter, plaintiff was transported by defendants KORYCKI, CABRERA, MARFOGLIO and/or LUCIANI to a nearby police precinct where he was searched, fingerprinted, photographed, confined against his will in a holding cell, and charged with Criminal Possession of a Weapon and Possession of a Firearm, Having Previously Been Convicted of a Felony. Further, once at the precinct, plaintiff was interrogated by defendant SAITTA.

17. In addition, defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI and/or SAITTA provided information and NYPD paperwork generated in connection with plaintiff's arrest to defendant JOEL.

18. In connection with plaintiff's arrest, defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL filled out false and/or misleading police reports/documents and forwarded them to prosecutors at the Kings County District Attorney's Office and/or the United States Attorney's Office for the Eastern District of New York. Thereafter, the above-named defendant officers repeated the aforementioned false and misleading information regarding the facts and circumstances of plaintiff's arrest. Specifically, defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL falsely stated, *inter alia*: 1) that they observed plaintiff to be fidgeting in the back seat of the livery cab; 2) that they observed plaintiff making furtive movements towards the right side of his body; 3) that they smelled marijuana; 4) that they observed plaintiff pointing his head and his eyes towards the right side of his body; 5) that they observed a visible bulge on the right side of plaintiff's body.

19. Thereafter, on or about November 22, 2016, the Honorable Brian M. Cogan of the United States District Court for the Eastern District of New York issued an Order granting plaintiff's Motion to Suppress in its entirety and holding that the aforementioned defendant officers did not have reasonable suspicion to search plaintiff based on inconsistencies between their individual testimonies and inconsistencies between their testimonies and the NYPD paperwork generated in connection with plaintiff's arrest.

20. As a result of the foregoing, plaintiff spent approximately fifteen (15) months in custody and made approximately ten (10) court appearances before all charges against him were dismissed in their entirety on or about March 9, 2017.¹

21. As a result of the foregoing, plaintiff DANIEL HAYES sustained, inter alia, loss of liberty, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, and deprivation of his constitutional rights.

STATE CLAIMS

22. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

23. On or about December 12, 2017 in connection with plaintiff's (then claimant/petitioner's) Petition for leave to serve a late notice of claim, the plaintiff duly served upon, presented to and filed with defendant THE CITY OF NEW YORK, a Notice of Claim setting forth all facts and information required under the General Municipal Law § 50 (e).

24. Thereafter, on or about May 18, 2018, the Honorable Katherine Levine of the Kings County Supreme Court, Civil Term, granted plaintiff's (then claimant/petitioner's) application for

¹ The Kings County prosecution continued under Docket Number 2016KN026997 concurrently with the federal prosecution until September 29, 2016 when the charges were dismissed and sealed in Kings County, because, upon information and belief, the prosecution was moving forward in the Eastern District of New York.

leave to serve a late notice of claim (which was pending under Kings County Supreme Court Index No. 523660/2017), issued an Order deeming plaintiff's (then claimant/petitioner's) Notice of Claim as timely filed *nunc pro tunc* to December 12, 2017, and further directed defendant THE CITY OF NEW YORK to notice plaintiff (then claimant/petitioner) for a hearing pursuant to General Municipal Law §50-h within sixty (60) days.

25. Defendant THE CITY OF NEW YORK has wholly neglected or refused to make an adjustment or payment thereof and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

26. Defendant THE CITY OF NEW YORK demanded a hearing pursuant to General Municipal Law § 50-h but said hearing has not currently been held. Attached hereto, as Exhibit "A" is a copy of the Stipulation executed by THE CITY OF NEW YORK permitting plaintiff to file this action.

27. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

28. Plaintiff has complied with all conditions precedent to maintaining the instant action.

29. This action falls within one or more of the exceptions as outlined in C.P.L.R. § 1602.

FIRST CLAIM FOR RELIEF UNDER N.Y. STATE LAW
MALICIOUS PROSECUTION

30. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

31. Defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL misrepresented and falsified evidence before the Kings County District Attorney and/or United States Attorney's Office for the Eastern District of New York.

32. Defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL did not make a complete and full statement of facts to the District Attorney and/or U.S. Attorney.

33. Defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL withheld exculpatory evidence from the District Attorney.

34. On May 5, 2016, defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL commenced a criminal proceeding against plaintiff.

35. Defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL were directly and actively involved in the initiation of criminal proceedings against plaintiff.

36. Defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL lacked probable cause to commence said criminal proceeding against plaintiff.

37. Defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL were motivated by actual malice in commencing said criminal proceeding against plaintiff.

38. Defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL were directly and actively involved in the continuation of criminal proceedings against plaintiff.

39. Defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL lacked probable cause to continue criminal proceedings against plaintiff.

40. Defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL acted with malice in continuing criminal proceedings against plaintiff.

41. Defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL misrepresented and falsified evidence throughout all phases of the criminal proceedings.

42. Specifically, defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL falsely stated, *inter alia*: 1) that they observed plaintiff to be fidgeting in the back seat of the livery cab; 2) that they observed plaintiff making furtive movements towards the right side of his body; 3) that they smelled marijuana; 4) that they observed plaintiff pointing his head and his eyes towards the right side of his body; 5) that they observed a visible bulge on the right side of plaintiff's body.

43. From May 5, 2016 until March 9, 2017, plaintiff was forced to repeatedly make appearances in Criminal Court to defend himself against the unlawful prosecution initiated by defendants KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL.

44. As a result of the malicious prosecution against him, plaintiff spent approximately fifteen (15) months in custody and made approximately ten (10) court appearances.

45. Notwithstanding the perjurious and fraudulent conduct of defendant KORYCKI, CABRERA, MARFOGLIO, LUCIANI, SAITTA, and/or JOEL, on or about March 9, 2017, the criminal prosecution against plaintiff was terminated in his favor when the charges against him were dismissed.

46. As a result of the aforementioned conduct, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he was humiliated and subjected to handcuffing and other physical restraints without probable cause, he suffered mental and physical injury, together with embarrassment, shock, fright, and loss of freedom.

**SECOND CLAIM FOR RELIEF UNDER N.Y. STATE LAW
NEGLIGENT HIRING/TRAINING/SUPERVISION/RETENTION**

47. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

48. Defendant CITY OF NEW YORK selected, hired, trained, retained, assigned and supervised all members of its Police Department, including the defendants individually named above.

49. Defendant CITY OF NEW YORK was negligent and careless when it selected, hired, trained, retained, assigned, and supervised all members of its Police Department including the defendants individually named above.

50. Due to the negligence of the defendants as set forth above, plaintiff suffered mental injury, pain and trauma, together with embarrassment, humiliation shock, fright, and loss of freedom.

51. As a result of the foregoing, plaintiff is entitled to compensatory damages and is further entitled to punitive damages against the individual defendants.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
May 31, 2018

BY: _____/S
GERALD COHEN
JOSHUA FITCH
ILYSSA FUCHS
COHEN & FITCH LLP

Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, states:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff DANIEL HAYES in the within entitled action

That your deponent has read the foregoing **COMPLAINT** and knows the contents thereof, and that the same is true to her own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not within the county wherein deponent maintains her office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
May 31, 2018

_____/S_____
ILYSSA S. FUCHS